



COMMERCIAL LEASE AMENDMENT

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AMENDMENT TO THE COMMERCIAL LEASE BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE LEASED PREMISES AT 8806 Valencia, Lubbock, TX 79424

Effective on _____, Landlord and Tenant amend the above-referenced lease as follows.

☐ A. Leased Premises: The suite or unit number identified in Paragraph 2A(1) is:

☐ (1) changed to _____.

☐ (2) contains approximately _____ rentable square feet ("rsf").

☒ B. Term:

☐ (1) The length of the term stated in Paragraph 3A is changed to _____ months and _____ days.

☐ (2) The Commencement Date stated in Paragraph 3A is changed to _____.

☒ (3) The Expiration Date stated in Paragraph 3A is changed to April 30, 2029.

☒ C. Rent: The amount of the base monthly rent specified in Paragraph 4A is changed to:

\$	<u>3,966.67</u>	from	<u>05/01/2024</u>	to	<u>04/30/2029</u>	:
\$	_____	from	_____	to	_____	:
\$	_____	from	_____	to	_____	:
\$	_____	from	_____	to	_____	:
\$	_____	from	_____	to	_____	:
\$	_____	from	_____	to	_____	:

☐ D. Security Deposit: The amount of the security deposit in Paragraph 5 is changed to \$ _____.

☐ E. Maintenance and Repairs: The following item(s) specified in the identified subparagraph of Paragraph 15C will be maintained by the party designated below:

<u>Para. No.</u>	<u>Description</u>	<u>Responsible Party</u>	
_____	_____	☐ N/A	☐ Landlord ☐ Tenant
_____	_____	☐ N/A	☐ Landlord ☐ Tenant
_____	_____	☐ N/A	☐ Landlord ☐ Tenant
_____	_____	☐ N/A	☐ Landlord ☐ Tenant
_____	_____	☐ N/A	☐ Landlord ☐ Tenant

☐ F. Parking:

☐ (1) Common Parking: The number of vehicles identified in Paragraph A(1) of the Commercial Lease Addendum for Parking (TXR-2107) is changed _____ to vehicles.

(TXR-2114) 07-08-22

Initialed for Identification by Landlord: CS, and Tenant: JS

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Commercial Lease Amendment concerning 8806 Valencia, Lubbock, TX 79424

- ☐ (2) Restricted Common Parking for Tenants: The number of vehicles identified in Paragraph A(2) of the Commercial Lease Addendum for Parking (TXR-2107) is changed to _____ vehicles.
- ☐ (3) Assigned Parking: Tenant's assigned parking areas identified in Paragraph A(3) of the Commercial Lease Addendum for Parking (TXR-2107) is changed to _____
- ☐ (4) Parking Rental: The amount of rent identified in Paragraph B of the Commercial Lease Addendum for Parking (TXR-2107) is changed to \$ _____
- ☐ G. Counterparts: If this amendment is executed in a number of identical counterparts, each counterpart is an original and all counterparts, collectively, constitute one agreement.
- ☒ H. Other: Paragraph(s) _____ are changed to read (*cite specific paragraphs and copy the applicable paragraphs verbatim, making any necessary changes*):

Cancellation Option – Landlord shall provide a one-time cancellation option after 3 years of rental payment. Cancellation Option must be exercised by written notice to Landlord no later than October 31, 2026. In the event Cancellation Option is exercised, Tenant shall pay a termination fee equal to amount of unamortized commissions as of April 30, 2027.

Tenant Improvements: Tenant shall be allowed to construct (at its expense) improvements detailed on Exhibit A. Tenant acknowledges that it previously started construction on improvements (an approximate 10 foot width extending from southwest corner of existing office space to west warehouse wall). This construction was never completed and detracts from overall building utility in its current state. As part of Tenant improvements, Tenant agrees to demolish and remove existing unfinished construction. Provided that improvements detailed in Exhibit A are completed in a professional and workmanlike manner, Tenant shall not be required to remove said improvements when lease expires.

Landlord: CDB EQUITY VTS LLS SER 8806 VALENCIA

Tenant: TDIndustries, Inc.

By: _____

By: _____

By (signature): Carol Blackwell

Printed Name: Carol Blackwell

Title: Sole Member Date: 9/14/2023

By (signature): Jeff Sherman

Printed Name: Jeff Sherman

Title: Vice President Date: 9/14/2023

By: _____

By: _____

By (signature): _____

Printed Name: _____

Title: _____ Date: _____

By (signature): _____

Printed Name: _____

Title: _____ Date: _____

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COMMERCIAL LEASE ADDENDUM FOR OPTION TO EXTEND TERM

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ADDENDUM TO THE COMMERCIAL LEASE BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE LEASED PREMISES AT 8806 Valencia, Lubbock, TX 79424

- A. At Tenant's option, Tenant may extend the term of above-referenced lease for one additional term(s) of 60 months each. The first additional term commences upon the expiration of the term stated in the lease and any subsequent additional term commences upon the expiration of the then applicable extended term.
- B. Tenant may exercise Tenant's option(s) to extend under Paragraph A only by providing written notice to Landlord at least 180 days before the end of the then current term of the lease.
- C. Tenant may not exercise Tenant's option(s) to extend under Paragraph A if the lease is terminated before Tenant exercises its option to extend or Tenant is in breach of the lease at the time Tenant exercises its option to extend.
- D. During the additional term(s), all provisions of the lease will continue as in effect immediately before the extension(s) commences except the base monthly rent during the additional term(s) will be:
(Check (1), (2) or (3) only.)

☐ (1)

Dates		Rate per rentable square foot (optional)		Base Monthly Rent \$
From	To	\$ Monthly Rate	\$ Annual Rate	
		/rsf/month	/rsf/year	
		/rsf/month	/rsf/year	
		/rsf/month	/rsf/year	
		/rsf/month	/rsf/year	
		/rsf/month	/rsf/year	
		/rsf/month	/rsf/year	
		/rsf/month	/rsf/year	

- ☐ (2) adjusted to reflect increases in the Consumer Price Index for "All Urban Consumers, U.S. City Average, All Items", issued by the Bureau of Labor Statistics of the U.S. Department of Labor. The adjustment will be determined by multiplying the base monthly rent for the last month of the lease by the following fraction: (i) the numerator will be the published index number for January in the year the additional term commences; and (ii) the denominator will be the published index number for January in the year in which the original lease term commences.
- ☒ (3) the prevailing rental rate on the 45th day before the additional term commences for premises of comparable size, quality, condition, improvements, utility, location, and length of term for tenant's of similar credit standing as Tenant.

- E. If Paragraph D(3) applies and the parties do not agree on the amount of the prevailing rental rate for the additional term before the 30th day before the additional term commences, each party will employ a state-certified appraiser and deliver the appraiser's written opinion of the prevailing rental rate to the other

(TXR-2104) 07-08-22

Initialed for Identification by Landlord: CA, _____, and Tenant: JS, _____

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Addendum for Option to Extend Term concerning

**8806 Valencia
Lubbock, TX 79424**

party not later than the 15th day before the additional term commences. If the appraisers' opinions do not vary by more than 10%, the prevailing rental rate will be the average of the two opinions. If the appraisers' opinions vary by more than 10%, the appraisers will jointly select a third appraiser whose fees will be shared equally by the parties. If a third appraiser is engaged, the prevailing rental rate will be the average of the two opinions that are closest in amount. If either party fails to employ or timely deliver an appraiser's opinion as required by this paragraph, the opinion rendered by the appraiser employed by the other party will determine the prevailing rental rate.

F. Special Provisions:**Landlord: GDB EQUITY VTS LLS SER 8806 VALENCIA**

By: _____
By (signature): Carol Blackwell
Printed Name: Carol Blackwell
Title: Sole Member

By: _____
By (signature): _____
Printed Name: _____
Title: _____

Tenant: TDIndustries, Inc.

By: _____
By (signature): Jeff Sherman
Printed Name: Jeff Sherman
Title: Vice President

By: _____
By (signature): _____
Printed Name: _____
Title: _____

(TXR-2104) 07-08-22

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COMMERCIAL LEASE ADDENDUM FOR BROKER'S FEE

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ADDENDUM TO THE COMMERCIAL LEASE BETWEEN THE UNDERSIGNED LANDLORD AND TENANT CONCERNING THE LEASED PREMISES AT 8806 Valencia, Lubbock, TX 79424

A. Leasing Fees: All leasing fees are earned when the above referenced lease is executed.

(1) Landlord will pay Principal Broker a leasing fee calculated and payable as follows:

☒ (a) 3.000 % of all base monthly rents to be paid for the term of the lease and the same percentage of the expense reimbursements stated or estimated in the lease, payable as follows: ~~one-half of such amount at the time Landlord and Tenant execute the lease and the remainder on the date the lease commences.~~

☐ (b) _____ % of all base monthly rents to be paid for the term of the lease and the same percentage of the expense reimbursements stated or estimated in the lease, payable as follows: _____

☐ (c) _____

(2) Landlord will pay Cooperating Broker a leasing fee calculated and payable as follows:

☒ (a) 3.000 % of all base monthly rents to be paid for the term of the lease and the same percentage of the expense reimbursements stated or estimated in the lease, payable as follows: ~~one-half of such amount at the time Landlord and Tenant execute the lease and the remainder on the date the lease commences.~~

☐ (b) _____ % of all base monthly rents to be paid for the term of the lease and the same percentage of the expense reimbursements stated or estimated in the lease, payable as follows: _____

☐ (c) _____

B. Renewal and Expansion Fees: If Landlord and Tenant subsequently renew, extend, or expand the lease, including a new lease for more, less, or different space in the Property or in any other property owned, controlled, or managed by Landlord, the brokers will be paid the fees set forth below. The fees will be earned and payable when the extension, renewal, expansion, or new lease is executed or commences, whichever is earlier.

(1) _____ will pay Principal Broker a fee of:

☐ (a) _____ % of all base monthly rents to be paid for the term of the renewal, extension, or new lease and the same percentage of the expense reimbursements stated or estimated in the lease governing the renewal, extension, or new lease;

(TXR-2102) 07-08-22

Initialed for Identification by Landlord CA, _____, and Tenant JS, _____

Wilkerson Properties, P. O. Box 2525 Lubbock TX 79408
Gordon Wilkerson

Produced with Lone Wolf Transactions (zipForm Edition) 717 N Herwood St, Suite 2200, Dallas, TX 75201 www.lwolf.com

Phone: 806-474-2207

Fax: 806-474-2216

TD Industries

Addendum for Broker's Fee concerning 8806 Valencia, Lubbock, TX 79424

☐ (b) _____ % of all base monthly rents to be paid for the term of the expansion and the same percentage of the expense reimbursements stated or estimated in the lease governing the expansion; or

☐ (c) _____

(2) _____ will pay Cooperating Broker a fee of:

☐ (a) _____ % of all base monthly rents to be paid for the term of the renewal, extension, or new lease and the same percentage of the expense reimbursements stated or estimated in the lease governing the renewal, extension, or new lease;

☐ (b) _____ % of all base monthly rents to be paid for the term of the expansion and the same percentage of the expense reimbursements stated or estimated in the lease governing the expansion; or

☐ (c) _____

C. **Fees in the Event of a Sale:** If, during any time the lease is in effect or during any time Tenant occupies the leased premises, including any extension, renewal, or expansion, Tenant agrees to purchase the leased premises or Property by oral or written agreement or option, brokers will be paid the additional fees set forth below. The additional fees will be earned at the time Landlord and Tenant enter into an agreement for the sale, purchase, or option for the leased premises or Property, and are payable at the time the sale or purchase closes.

(1) _____ will pay Principal Broker an additional fee of:

☐ (a) _____ % of the sales price for the purchase.

☐ (b) _____

(2) _____ will pay Cooperating Broker an additional fee of:

☐ (a) _____ % of the sales price for the purchase.

☐ (b) _____

D. **County:** All fees under this addendum are payable in _____ County, Texas.

E. **Attorney's Fees:** If Landlord, Tenant, or any broker is a prevailing party in any legal proceeding brought as a result of a dispute under this addendum or any transaction related to or contemplated by this addendum, such party will be entitled to recover from the non-prevailing parties all costs of such proceeding, prejudgment interest, and reasonable attorney's fees.

F. **Special Provisions:**

Addendum for Broker's Fee concerning 8806 Valencia, Lubbock, TX 79424

NOTICE: Under Chapter 62, Texas Property Code, Broker is entitled to claim a lien against the Property to secure payment of an earned commission.

Landlord: CDB EQUITY VTS LLS SER 8806 VALENCIA

Tenant: TDIndustries, Inc.

By: _____

By (signature): Carol Blackwell

Printed Name: Carol Blackwell

Title: Sole Member

By: _____

By (signature): Jeff Sherman

Printed Name: Jeff Sherman

Title: Vice President

By: _____

By (signature): _____

Printed Name: _____

Title: _____

By: _____

By (signature): _____

Printed Name: _____

Title: _____

Principal Broker:

Broker / Company Name: Wilkerson Properties, Inc.

License No. _____

By (signature): _____

Printed Name: Gordon Wilkerson

Title: President License No. _____

Cooperating Broker:

Broker / Company Name: Stream

License No. _____

By (signature): _____

Printed Name: Todd Noonan

Title: Senior Vice President License No. _____

Exhibit A

